

**LEE'S SUMMIT POLICE DEPARTMENT
GENERAL ORDER 200.29C**

SUBJECT: Automated License Plate Reader System	Issue Date: 01-31-2024	Effective Date:01-31-2024
Rescinds: General Order 200.29B issued on 12-21-2023		
Reference: CALEA: 41.3.9; G.O. 200.09I; RSMo. Chapter 109		
By Order Of: W. Travis Forbes, Chief Of Police		

I. POLICY

Automated License Plate Reader (ALPR) technology provides automated detection of license plates. The ALPR is used to convert data associated with vehicle license plates and use it for official law enforcement purposes. These systems provide many opportunities for the enhancement of productivity, effectiveness, and officer safety. This policy establishes the policy and procedures for use of these systems by department personnel.

II. DEFINITIONS

- A. **Alert** - A visual and/or auditory notice that is triggered when the ALPR system receives a potential “hit” on a license plate.
- B. **ALPR** – Automated License Plate Recognition/License Plate Reader.
- C. **ALPR Generated Data** – Information captured, cataloged, and stored by the service provider and accessed by an authorized employee through a software interface. This information can be collected by the ALPR system, derived from the ALPR interface, or provided by the System Provider. ALPR Data can include but is not limited to: reports of date, time, and locations; summary and usage reports, photos, vehicle characteristics, and license plate characteristics.
- D. **ALPR Systems Manager** – An employee of the City of Lee’s Summit Police Department who is responsible for the administration of the ALPR program. The ALPR Systems Manager administers users and access to the ALPR system, coordinates the installation and maintenance of the system, ensures the ALPR system/cameras are functioning properly, and conducts audits as necessary to ensure compliance with the requirements of the law and this policy.
- E. **Authorized Employee** – Any employee of the City of Lee’s Summit Police Department that has been authorized to access data gathered by an ALPR system. Authorized employees may have different levels of access that provide varying information depending on level.
- F. **Automated License Plate Reader (ALPR) System** –A system provided, installed, and maintained by a service provider. Components of the system include cameras that automatically capture license plate/vehicle data; software systems that interpret, catalog, store and purge data; and an interface where authorized users can access data.
- G. **Fixed ALPR system** – ALPR cameras that are permanently affixed to a structure, such as a pole, a traffic barrier, or a bridge.
- H. **Hit** – An automatic read matched to a plate that has previously been registered on an agency’s “hot list” of vehicle plates related to stolen vehicles, wanted vehicles,

or other supporting investigation, or which has been manually registered by a user for further investigation.

- I. **Hot List** - License plate numbers of stolen cars, vehicles owned by persons of interest, and vehicles associated with AMBER Alerts that are regularly added to “hot lists” circulated among law enforcement agencies. Hot list information can come from a variety of sources, including stolen vehicle information from the National Insurance Crime Bureau and the National Crime Information Center (NCIC), as well as national, state and local AMBER Alerts and Department of Homeland Security watch lists. Departments of motor vehicles can provide lists of expired registration tags, and law enforcement agencies can interface their own, locally compiled hot lists to the ALPR system. These lists serve an officer safety function as well as an investigatory purpose. In addition to agency supported hot lists, users may also manually add license plate numbers to hot lists in order to be alerted if and when a vehicle license plate of interest is “read” by the ALPR system.
- J. **Law Enforcement Archival and Retrieval Network (LEARN)** – Server application which retains data collected from the ALPR system.
- K. **Mobile ALPR system** – ALPR cameras that are affixed, either permanently (hardwired) or temporarily (e.g., magnet-mounted), to a law enforcement vehicle for mobile development.
- L. **Portable ALPR system** – ALPR cameras that are transportable and can be moved and deployed in a variety of venues as needed, such as street signs and traffic signals.
- M. **Service Provider** – Vendors contracted by the City of Lee’s Summit to provide ALPR data, hardware, software, installation, or maintenance.

III. PROCEDURES

- A. General (41.3.9a)
 - 1. ALPR systems and associated equipment and databases are restricted to official law enforcement purposes. Authorized users shall not use, or allow others to use, the equipment or systems for any unauthorized purpose. Misuse of this equipment and associated databases, or data, may be subject to sanctions and/or disciplinary actions.
 - 2. ALPR systems and ALPR generated data and associated media are the property of this agency and/or service providers and intended for use in conducting official law enforcement business.
 - 3. Prior to using the ALPR system, authorized users will receive training on the ALPR system. Generally, this will occur during the field training process and will be completed by the Field Training Officer. Training should include an overview of the system, security of information, handling of ALPR data, familiarization with the ALPR interface, and a review of this policy. (41.3.9c)
 - 4. Periodically, the ALPR Systems Manager will coordinate additional personnel training as necessary for policy, procedural, software, or hardware changes.
 - 5. Police Department ALPR cameras will be deployed in a manner that is determined to be in the best interest of the community and the Department.

Locations for portable, fixed, and mobile ALPR cameras will be determined by an analysis of information including, but not limited to, crime data and trends.

6. When conducting searches within an ALPR software/database, a case number will be referenced for the reason of the search. If no case number exists, a call for service number will be utilized. If no case or call for service number exists, the type of crime will be referenced (e.g., burglary suspect).

B. Administration

1. Division Commanders or their designees manage administrative oversight for ALPR systems deployment and field operations.
2. Responsibilities:
 - a. Ensure proper collection, storage, and retention of ALPR data and associated media files (41.3.9d);
 - b. Selection of the personnel approved to operate the ALPR system;
 - c. Maintaining an adequate number of trainees (41.3.9c);
 - d. Maintaining records identifying ALPR deployments and documenting their results, including appropriate documentation of significant incidents and arrests that are related to ALPR usage; and
 - e. Authorizing any requests for ALPR systems use or data access (41.3.9b).

C. Operation (41.3.9a)

ALPR operation and access to ALPR collected data shall be for official agency purposes only such as but not limited to:

- a. Stolen vehicles;
 - b. Stolen license plates;
 - c. Counterfeit license plates;
 - d. Hit and run suspect vehicles;
 - e. Suspended or revoked drivers;
 - f. Missing persons - AMBER alerts, etc;
 - g. Crimes in progress - While used to canvass license plates around any crime scene, particular consideration should be given to using ALPR-equipped cars to canvass areas surrounding homicides, shootings, and other major incidents. Partial license plates reported during major crimes should be entered into the ALPR system in an attempt to identify suspect vehicles;
 - h. Wanted fugitives, violators of court orders and absconders;
 - i. Proximity, identity, or association of known, or observed but as -yet unknown, suspects in criminal or terrorism investigations;
 - j. High Risk Offenders (HRO), subjects of Suspected Criminal Activity Reports (SCAR), and similar Criminal Intelligence suspects that have been reported to be engaged in ongoing criminal enterprises.
 - k. Persons of interest in on-going criminal investigation.
2. Operation, use, and maintenance check of the ALPR systems and equipment is restricted to department personnel who have received department-approved training. (41.3.9c)

D. Daily Procedures for Mobile ALPR Systems (41.3.9a)

1. At the start of each shift, operators must ensure that the ALPR system is operating properly.
2. Operators shall log into the ALPR software system whenever they are using the vehicle in the course of their regular duties.
3. Operators shall log out of the system at the end of their shift.

E. Alerts/Hits (41.3.9a)

1. Alerts/hits provided by the ALPR system alone should not be considered probable cause. The operator must visually verify that the vehicle plate number matches the plate number run by the ALPR system, including both alphanumeric characters of the license plate and the state of issuance.
 - No match - If for any reason they do not match, the hit will be rejected.
 - Match – Verify the current status of the plate through a Criminal Justice Information System (CJIS) query via MDT or dispatch when circumstances allow.
 - In rare occasions, compelling circumstances may exist, that the delay in verifying the hit could jeopardize an investigation and/or officer safety. In these circumstances, this validation can be deferred.
 - If the hit cannot be verified as still being entered and no other compelling circumstances exist, the vehicle will not be stopped solely on the ALPR without independent reasonable suspicion being established.
2. Follow the vehicle stop procedures outlined in [General Order 200.09I](#).
3. In each case in which an alert or a hit is triggered, the operator should record the disposition of the alert and the hit into the ALPR system.
4. When an ALPR hit leads to an arrest or otherwise leads to the generating of a police report, the reporting operator shall indicate the use of the ALPR equipment in the records management system and any associated forms. When referring to an ALPR system in the records management system or associated forms, employees should use the specific name of the system utilized (Flock, Vigilant, etc.).
5. Hot lists may be updated manually with plate data relevant to a specific criminal investigation or adjudication.
 - Supervisors and detectives can enter a specific plate into the ALPR system hotlist and will be alerted when that plate is located.
 - When a plate is manually entered into the ALPR system, the user should document the reason for entering the plate into the Hot List.
 - Authorized users without permissions to modify a hotlist who wish to enter a specific plate into the ALPR system will send a request, in writing, to a supervisor, detective, or ALPR Systems Manager; including specific reasons for the request.

- If an authorized user is made aware a particular hotlist entry is no longer required, that user is responsible for informing a supervisor, detective, or ALPR Systems Manager so the hotlist entry can be removed.
 - 6. Special Details: ALPR use during nontraditional deployments (e.g., special operations or during a criminal investigation) must be approved by a Division Commander/designee. (41.3.9b)
 - 7. Searches of historical data within the ALPR system will only be conducted by authorized users. (41.3.9b)
- F. Maintenance for Mobile ALPR Systems
1. Operators shall check equipment on a regular basis to ensure functionality and camera alignment. Any equipment that falls outside expected functionality shall be removed from service and a [Vehicle Equipment Repair Form](#) completed to correct deficiencies.
 2. To prevent damage to the camera/magnet system, vehicles equipped with the ALPR system can only be washed by hand, or in a brushless car wash.
- G. Overall ALPR Systems Maintenance
1. Any technical or maintenance issues concerning the ALPR or system shall be brought to the attention of the ALPR Systems Manager who will coordinate with the service provider to address the issue.
 2. ALPR system repairs, hardware or software, shall be conducted by agency authorized sources.
- H. Data Sharing and Dissemination (41.3.9a)
1. ALPR data should be considered “For Official Use Only”; is exempt from mandatory release to the public under RSMO 610.100 subsection 3 "known as the Missouri Sunshine Law" and can be shared for legitimate law enforcement purposes.
 2. When ALPR data owned solely by the Lee’s Summit Police Department is disseminated outside the agency, it should be documented in a secondary dissemination log.
 3. ALPR data owned and stored by a third party may be disseminated electronically as allowed by the software but must have the ability to produce an audit log of disseminated data.
 4. Information sharing among agencies should be dictated in accordance with MOUs (memoranda of understanding) or established departmental policies.
- I. System Audit
1. An annual audit of each ALPR system will be conducted by the Crime Analyst and forwarded to the Office of the Chief of Police through the chain of command to verify ALPR system integrity is maintained.

J. Retention (41.3.9d)

1. All ALPR data stored on a local server should be retained in accordance with Missouri Retention and Disposition Schedules as outlined in [Public and Business Records, Chapter 109 RSMo](#).
2. Information from license plate scans obtained by the ALPR will be retained on a local server or a CJIS approved, third party cloud provider for a period of 30 days and then automatically purged.
3. ALPR information relevant to a specific criminal investigation may be extracted from local or cloud data storage prior to the automatic purge and added to the case investigation file.

IV. DATA SECURITY AND ACCESS

A. Data Security and Access (41.3.9b)

1. The ALPR service provider supplies an interface where users can access, search, and view data captured by ALPR systems for official use only. The ALPR Systems Manager determines who is an authorized employee based on their essential duties. In general, all commissioned officers will be provided access to the ALPR system and other personnel as necessary.
2. Data security and access will be maintained with the following safeguards:
 - The ALPR service provider will maintain data security and data access in compliance with the parties' contractual agreement, appropriate industry standards, and applicable laws.
 - The Department will control and restrict access to the ALPR system and its data to authorized employees who will be issued a unique username and password. The ALPR Systems Manager will ensure all authorized employees maintain their access and revoke access when appropriate. The service provider will ensure the ALPR system records any data access, who accessed the information, what information was accessed, and when.